

25STCV16551 25STCV16551

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MOTION FOR LEAVE

The Court tenders the following decision

in the matter Scott Kawasaki v. Libra Hollywood, LLC, et al., Los Angeles County Superior Court case number 25STCV16551, set for hearing on June 29, 2026. Scott Kawasaki (Plaintiff) moves for leave to file a first amended complaint (FAC) in this matter. Libra Hollywood, LLC, H.O.T.N. Holdings, LLC, Libra Shops LLC, Libra Palm Desert, Balance Management, LLC, John Greenwood, Bradley Ulisky, Howard Mills, and H.O.T.N. Club, Inc. (collectively, Defendants) oppose the motion. The motion is granted.

A.

Legal Standard

The court may, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading, including adding or striking out the name of any party, or correcting a mistake in the name of a party, or a mistake in any other respect. (Code Civ. Proc., § 473, subd. (a)(1).) California courts are required to permit liberal amendment of pleadings in the interest of justice between the parties to an action. (Code Civ. Proc., § 473, subd. (a); Dieckmann v. Superior Court (1985) 175 Cal.App.3d 345, 352.) “Public policy dictates that leave to amend be liberally granted.” (Centex Homes v. St. Paul Fire & Marine Insurance Co. (2015) 237 Cal.App.4th 23, 32 (Centex Homes).)

Under California Rules of Court, rule 3.1324, a motion to amend a pleading before trial must include the following content: (1) a copy of the proposed amendment or amended pleading;

(2) a statement regarding what allegations in the previous pleading are proposed to be deleted if any, and where they are located; and (3) a statement regarding what allegations are proposed to be added to the previous pleading, if any, and where. Subdivision (b) of rule 3.1324 additionally requires that the motion be accompanied by a separate, supporting declaration, specifying the following: (1) the amendment's effect; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.

B. Discussion

Plaintiff moves for an order granting him leave to file an FAC adding additional allegations to support his breach of contract claim. (Stein Decl. ¶ 8.) Plaintiff has complied with the procedural requirements of rule 3.1324(a) by providing a copy of the proposed amended pleading (id., Ex. 3) and a statement regarding the allegations to be added. Plaintiff has also satisfied the requirements of 3.1324(b). He has offered a declaration speaking to the proposed amendment's effect, why it is necessary and proper, and why it was not proposed earlier, namely that the relevant facts were not known until recent investigation uncovered them in January 2026. (Id. ¶¶ 8–10.) Thus, Plaintiff's motion is procedurally proper.

Defendants take issue with

Plaintiff's failure to amend his pleading within the window granted by the Court after sustaining multiple defendants' demurrers. While this would have been the more efficient course, Plaintiff has properly sought leave to amend in this instance after failing to amend in that previous window. Plaintiff has taken the necessary steps to amend his complaint after committing a procedural error in failing to amend after the demurrer was sustained. California courts are required to permit liberal amendments of pleadings — Defendants fail to identify why that policy should be disregarded in this instance. And with respect to the alleged futility of Plaintiff's amendment, Defendants may raise these arguments on a subsequent demurrer. Accordingly, Plaintiff's motion is granted.

C.

Conclusion

The Court grants
the motion.